

For the same reasons Plaintiff's FEHA and Labor Code retaliation claims fail, this claim for retaliation under the labor code fails for evidence of an adverse employment action and a causal link between Plaintiff's protected activity and the alleged adverse action.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2501603	COMBS VS PALM SPRINGS UNIFIED SCHOOL DISTRICT	MOTION TO COMPEL RESPONSES TO EMPLOYMENT FORM INTERROGATORIES, SPECIAL INTERROGATORIES AND DEMAND FOR PRODUCTION OF DOCUMENTS BY PALM SPRINGS UNIFIED SCHOOL DISTRICT, MARK ARNOLD, SIMONE KOVATS

Tentative Ruling: No tentative ruling. Hearing will be conducted on Thursday August 20, 2026 8:30 a.m. Department PS2.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2508584	MATTISON VS LOPEZ	DEFENDANT UBER TECHNOLOGIES, INC.'S DEMURRER TO PLAINTIFFS' FIRST AMENDED COMPLAINT; BY UBER TECHNOLOGIES, INC.

Tentative Ruling:

This action arises out of a motor vehicle accident. On November 6, 2025, Plaintiffs Alina Mattison ("Mattison"), William Montagne ("Montagne"), and Shannon Weston ("Weston") (together "Plaintiffs") filed a Complaint against Defendants Richard Kenneth Lopez ("Lopez"), City of La Quinta ("City"), and County of Riverside ("County") for (1) negligence/negligence per se; (2) violation of Gov. Code § 835; and (3) loss of consortium. On March 27, 2026, the parties stipulated, and the Court entered an order allowing Plaintiffs to file a First Amended Complaint ("FAC") in which they dismissed City and County as defendants, added Defendant Uber Technologies, Inc. ("Uber") as a defendant, and added new causes of action arising out of Uber's alleged involvement in the incident. On April 2, 2026, Plaintiffs filed the FAC asserting the following causes of action: (1) negligence/negligence per se; (2) negligence; (3) negligent hiring/retention/supervision; (4) negligent infliction of emotional distress ("NIED"); and (5) loss of consortium.

In the FAC, Plaintiffs allege that on December 12, 2024, Mattison was driving on Airport Boulevard in La Quinta with Weston in the front passenger seat, when she was struck by a vehicle driven by Lopez when he failed to stop at a stop sign. (FAC at ¶¶ 11-12, 35-36.) Lopez was driving for Uber at the time he struck Plaintiffs' vehicle. (FAC at ¶¶ 25, 29.) Uber solicits and retains non-professional drivers, who apply on-line by providing a driver's license, vehicle registration, and proof of insurance, and completing a background check. (FAC at 21-23.) Uber uses a smartphone application ("app") to operate its transportation and delivery services, and that app connects drivers with users who need

a ride or delivery services (the “Uber App”). (FAC at ¶¶ 16-18.) Through the Uber App, Uber stays in constant contact with its drivers; directs the driver to the customer’s location; determines the route to be used by the driver; and provides turn-by-turn directions to the driver throughout the trip. (FAC at ¶¶ 19, 26(f).) Uber requires its drivers to use the Uber App while they are driving, and it causes driver distraction and inattention to the actions of others. (FAC at ¶ 53.) At the time of the accident, Lopez was logged on and using the Uber App, and it caused distraction, such that it was the proximate cause of the accident. (FAC at ¶¶ 25, 53.)

Uber now demurs to the 2nd (negligence), 3rd (negligent hiring, supervision, and/or retention), and 4th (NIED) causes of action on the ground that the fail to allege sufficient facts to state a cause of action. It argues that the negligence cause of action fails because there are no facts alleged establishing a causal connection between Lopez’s use of the Uber App and the collision. It argues that the negligent hiring, supervision, and/or retention cause of action fails because there are no allegations that Uber knew or should have known that Lopez posed a particular risk prior to the accident. Finally, it argues that the NIED cause of action fails because it is not an independent tort and merely duplicates the negligence allegations.

In opposition, Plaintiffs argue that the demurrer should be overruled because Uber failed to meet and confer before filing it. They also argue that the 2nd cause of action adequately alleges causation; the 3rd cause of action is sufficiently pled; and emotional distress damages are recoverable, so the NIED cause of action is appropriate.

In reply, Uber argues that a demurrer cannot be overruled for failure to meet and confer; there are no facts alleged establishing causation for negligence; there are no allegations regarding knowledge of unfitness; and NIED is not an independent cause of action.

Demurrer

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (C.C.P. § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Kattelman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

2nd Cause of Action - Negligence

To maintain a cause of action for negligence, the plaintiff must show: (1) a legal duty to use due care; (2) breach of such duty; (3) the breach was the proximate or legal cause of resulting injuries. (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.) “Negligence may be alleged in general terms; that is, it is sufficient to allege an act was negligently

done without stating the particular omission which rendered it negligent.” (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

Uber argues, citing *Bockrath v. Aldrich Chemical Co.* (1999) 21 Cal.4th 71, that Plaintiffs do not sufficiently allege causation in the present case. However, as even Uber points out, the court in *Bockrath* stated that “[i]n the ordinary personal injury lawsuit, in which the complaint’s factual recitations show plainly the connection between cause and effect, it suffices to plead causation succinctly and generally.” (*Id.* at 78.) While the court went on to say that when the facts alleged do not create a natural inference of causation, the plaintiff must allege specific facts explaining how the conduct caused or contributed to the incident [*ibid.*], that is not the case here. *Bockrath* involved an action wherein a plaintiff sued 55 manufacturers of numerous products he was exposed to over 21 years, and while he generally pled that all defendants were responsible, he did not allege how or which specific chemicals or defendants caused his injuries. This case is nothing like *Bockrath*, in that Uber is the only defendant in Plaintiffs’ negligence claim based on Lopez’s use of the Uber App. Furthermore, Plaintiffs allege that Uber requires its drivers to use the Uber App while they are driving; Uber stays in constant contact with the drivers through the App, determines their route, and provides turn-by-turn directions throughout the trip; because of these things, the Uber App causes driver distraction and inattention to the actions of others; Lopez was logged on and using the Uber App at the time of the accident; and the Uber App caused distraction, such that it was the proximate cause of the accident. (FAC at ¶¶ 19, 25, 26(f), 53.) This is sufficient for pleading purposes to show causation. OVERRULED

3RD Cause of Action - Negligent Hiring, Supervision, and/or Retention

An employer can be held liable for the negligent hiring, supervision or retaining of an unfit employee if the employer knew or should have known that the employee created a particular risk and that particular harm materializes. (*Doe v. Capital Cities* (1996) 50 Cal. App. 4th 1038.) To recover for negligent hiring or supervision, the harm that occurred must be from the particular risk that the employer was aware of when it hired the employee. (See, *Evan F. v. Hughson United Methodist Church* (1992) 8 Cal.App.4th 828, 837-838 [No liability for negligent hiring of pastor who was a child molester when the plaintiff was not molested by the pastor, but by her brother, who had been molested by the pastor].) Additionally, the risk of the particular harm suffered must be reasonably foreseeable. (*D.Z. v. Los Angeles Unified School District* (2019) 35 Cal.App.5th 210, 229-230 [“to support her negligent supervision claim, appellant had to prove both that [the defendant] posed a risk of harm to students and that the risk of harm was reasonably foreseeable”].)

Here, Plaintiffs fail to allege that Uber knew or should have known of any particular risk posed by Lopez when it hired or retained him. (See, FAC at ¶¶ 62-73.) The sole basis for their claim is that Uber hired Lopez knowing he was a non-professional driver and did not perform any tests or provide formal training regarding his driving. (FAC at ¶¶ 63-65.) These allegations are insufficient to support a negligent hiring, supervision, and retention cause of action. SUSTAINED

4TH Cause of Action - NIED

In addition to two causes of action for negligence, Plaintiffs assert a cause of action against Uber for NIED. There is no independent tort of NIED; the tort is negligence. (*Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal.4th 965, 984.) As Uber correctly points out, a demurrer is properly sustained as to a duplicative cause of action “which adds nothing to the complaint by way of fact or theory.” (*Award Metals, Inc. v. Superior Court* (1991) 228 Cal.App.3d 1128, 1135) As Plaintiff asserts two separate negligence causes of action against Uber [FAC at ¶¶ 28-60], emotional distress damages are recoverable under those causes of action (if proven), and the NIED cause of action adds nothing to the negligence claim [see, FAC at ¶¶ 74-78.] SUSTAINED

4.

CASE #	CASE NAME	HEARING NAME
CVPS2508584	MATTISON VS LOPEZ	MOTION TO STRIKE ON 1ST AMENDED COMPLAINT OF ALINA MATTISON

Tentative Ruling: Granted.

Moving party to provide notice pursuant to CCP 1019.5.

This action arises out of a motor vehicle accident. On November 6, 2025, Plaintiffs Alina Mattison (“Mattison”), William Montagne (“Montagne”), and Shannon Weston (“Weston”) (together “Plaintiffs”) filed a Complaint against Defendants Richard Kenneth Lopez (“Lopez”), City of La Quinta (“City”), and County of Riverside (“County”) for (1) negligence/negligence per se; (2) violation of Gov. Code § 835; and (3) loss of consortium. On March 27, 2026, the parties stipulated, and the Court entered an order allowing Plaintiffs to file a First Amended Complaint (“FAC”) in which they dismissed City and County as defendants, added Defendant Uber Technologies, Inc. (“Uber”) as a defendant, and added new causes of action arising out of Uber’s alleged involvement in the incident. On April 2, 2026, Plaintiffs filed the FAC asserting the following causes of action: (1) negligence/negligence per se; (2) negligence; (3) negligent hiring/retention/supervision; (4) negligent infliction of emotional distress (“NIED”); and (5) loss of consortium.

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